

2023 SCC OnLine All 340

In the High Court of Allahabad
(BEFORE MANJIVE SHUKLA, J.)

Shashi Bhushan Singh ... Petitioner;

Versus

State of U.P. and Others ... Respondents.

Writ - C No. - 19594 of 2023

Decided on June 28, 2023

Advocates who appeared in this case :

Counsel for Petitioner:- Pankaj Kumar Yadav

Counsel for Respondent:- C.S.C., Rishu Mishra

The Order of the Court was delivered by

MANJIVE SHUKLA, J.:— Heard learned counsel for the petitioner, learned Standing Counsel for Respondent No. 1 as well as Mr. Pankaj Dubey, Advocate holding brief of Ms. Rishu Mishra, learned counsel for the Respondents No. 2 to 5.

2. Learned counsel for the petitioner has submitted that petitioner has started poultry unit and for that unit, he applied for electricity connection. An electricity meter by Power Corporation was installed in the premises of petitioner on 29.03.2016 but actual supply of electricity started on 25.11.2018.

3. Power corporation issued an electricity bill with effect from the date of installation of electricity meter in the premises of the petitioner, as such, petitioner filed a claim before Electricity Grievance Redressal Forum which was registered as Case No. 108 of 2019 (*Sri. Shashi Bhushan Singh v. Executive Engineer*). Forum decided the aforesaid case vide order dated 19.01.2021 whereby direction was issued that Power Corporation will issue revised bill to the petitioner with effect from the date of supply of the electricity i.e. with effect from i.e. 25.11.2018 and the electricity tariff provided for agricultural consumption shall be taken from the petitioner.

4. When the aforesaid order dated 19.01.2021 was not complied with by the Power Corporation, petitioner again moved a complaint before Electricity Ombudsman and then Power Corporation was put to notice and a compliance report was filed on behalf of Power Corporation wherein the electricity bill prepared in accordance with the direction given by the forum, was annexed.

5. In the revised bill issued in compliance of the order dated 19.01.2021 issued by the Forum, it was mentioned that if petitioner is

aggrieved by the bill amount then he can raise his objection within 15 days.

6. Petitioner did not choose to file any objection in respect of the aforesaid bill before Ombudsman and ultimately Ombudsman passed final order on 8.02.2023.

7. Learned counsel appearing for Respondents No. 2 to 4 has submitted that total bill payable by the petitioner as on date is of Rs. 09,09,686/-

8. At this stage, learned counsel for the petitioner submits that the aforesaid bill raised by the Power Corporation has not been prepared on the basis of agricultural electricity tariff as directed by the Forum vide its order passed on 19.01.2021.

9. Learned counsel appearing for Corporation submits that if petitioner is disputing his current bill then he has a remedy under Clause 6.50 of Electricity Supply Code and he can file a representation before the concerned Executive Engineer and he will look into the matter.

10. Learned counsel for the Respondent has also very fairly stated that the electricity supply, which has been disconnected, can be restored in the premises of the petitioner subject to deposition of Rs. 4,00,000/- with an indemnity bond that if after revision of bill by the Executive Engineer, there remains balance amount, to be paid by the petitioner, then he will pay the same within the time frame provided by concerned Executive Engineer.

11. In the aforesaid circumstance, this Writ Petition is finally *disposed of* with a direction to petitioner to deposit Rs. 4,00,000/- within 30 days from today and if he deposits the said amount then he will be at liberty to file a representation before Respondent No. 5 for revision of his bill as contemplated under Clause 6.5 of Electricity Supply Code. It is further provided that if the petitioner files a representation under the aforesaid Clause, the same shall be decided within a period of one month from the date of submission of his representation.

12. It is made clear that the electricity supply to the petitioner's premises will be restored after he deposits the aforesaid Rs. 4,00,000/-

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